

ment of the United States of America or of the Government of France, or *any other Foreign Government*," it was held that investments in New York and Ohio stocks and Georgia bonds were authorized by the power (c).] And where trustees were empowered to "continue or change securities from time to time, *as to the majority should seem meet*," and they proposed to call in certain securities and invest in American Government and American railway securities, the Court in an administration suit would not allow the trustees to exercise their discretion in this way, though great part of the testator's own estate was left by him thus invested (f). [But where a testator gave all his residue to trustees upon trust to invest in the parliamentary stocks or funds, or upon real securities, and the will contained a proviso authorising the trustees, as often as they should think it expedient so to do, to sell out, transfer or otherwise vary the trust moneys, funds, and securities, and to invest the same in or [*322] on *any other funds or securities whatsoever*, it was held that the trustees were acting within their powers in selling out New Three per cent. annuities, and investing the proceeds in Russian Railway bonds and Egyptian bonds (a).

37. **Indian railways.**—The Court has even in an administration action sanctioned the conversion of Bank Annuities into East India Railway stock annuity B, and into Scinde, Punjaub and Delhi, Railway 5l. per cent. guaranteed stock, where the will authorised an investment in the guaranteed stock of any Railway Company in India, notwithstanding that the Scinde, Punjaub and Delhi, Railway was like most of the Indian Railways held only on a lease under Government (b).

38. **Shares in companies.**—However large the power of investment may be it is the duty of the trustees to exercise their discretion as to the choice of investment, and they should before investing in the shares of a company have

[(e) *Cadett v. Earle*, 5 Ch. D. 710.]

[(a) *Lewis v. Nobbs*, 8 Ch. D.

(f) *Bethell v. Abraham*, 17 L. R. Eq. 24.

591.]

[(b) *Re Mansel*, 30 W. R. 133.
See 42 & 43 Vict. c. ccvi. s. 37.]